

Tentative Rulings for August 27, 2026 Department PS1

**To request oral argument, you must notify Judicial Secretary
Carol Delfosse-Kidd at (760) 904-5722
and inform all other counsel no later than 4:30 p.m.**

This court follows California Rules of Court, Rule 3.1308 (a) (1) for tentative rulings (see Riverside Superior Court Local Rule 3316). Tentative Rulings for each law & motion matter are posted on the Internet by 3:00 p.m. on the court day immediately before the hearing at [Riverside Superior Court-Tentative Rulings](#). If you do not have Internet access, you may obtain the tentative ruling by telephone at (760) 904-5722.

To request oral argument, no later than 4:30 p.m. on the court day before the hearing you must (1) notify the judicial secretary for Department PS1 at (760) 904-5722 and (2) inform all other parties of the request and of their need to appear remotely, as stated below. If no request for oral argument is made by 4:30 p.m., the tentative ruling **will become the final ruling** on the matter effective the date of the hearing. **UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.**

COUNSEL AND SELF-REPRESENTED PARTIES ARE ENCOURAGED TO APPEAR AT ANY LAW AND MOTION DEPARTMENT TELEPHONICALLY WHEN REQUESTING ORAL ARGUMENTS.

For information and instructions on remote appearances via **ZOOM**, visit the court's website at [Riverside Superior Court-Remote Appearances](#)

You may also make a Telephonic Appearance: On the day of the hearing, call into one of the below listed phone numbers, and input the meeting number (followed by #):

- Call-in Numbers: 1-833-568-8864 (Toll Free), 1-669-254-5252,
1-669-216-1590, 1-551-285-1373 or 1-646-828-7666
- Meeting Number: **160 520 9376**

Please **MUTE** your phone until your case is called and it is your turn to speak. It is important to note that you must call fifteen (15) minutes prior to the scheduled hearing time to check in or there may be a delay in your case being heard.

Riverside Superior Court provides official court reporters for hearings on law and motion matters only for litigants who have been granted fee waivers and only upon their timely request. (See General Administrative Order No. 2021-19-1) Other parties desiring a record of the hearing must retain a reporter pro tempore.

1.

CASE #	CASE NAME	HEARING NAME
CVPS2506378	ROMERO VS CREATING A LEGACY, INC.	HEARING RE: MOTION TO APPOINT A NEUTRAL ARBITRATOR PURSUANT TO CODE OF CIVIL PROCEDURE SECTION 1281.6 BY CREATING A LEGACY, INC.

Tentative Ruling: The parties' moving and opposition papers show that the method for selecting a neutral arbitrator, as agreed upon by the parties in the arbitration agreement, has failed and therefore the condition for the Court's intervention to appoint a neutral arbitrator under Code of Civil Procedures section 1281.6 has been satisfied.

Defendant asserts that the arbitration agreement contains no contractual procedures for selecting or appointing an arbitrator. That is not entirely accurate as the agreement does vaguely spell out the procedures to be followed in the arbitration proceeding, including the mutual selection of the arbitrator. Defendant's motion is accompanied by the declaration of its counsel, Mark W. Edelstein, to which a copy of the parties' arbitration agreement is attached as an exhibit. The relevant portions of the agreement provide that "[a]fter any and all jurisdictional prerequisites have been satisfied, the Party bringing the claim must demand arbitration in writing and deliver the written demand by hand or first-class mail to the other Party within the applicable statute of limitations period. (Edelstein Decl., ¶ 4, Ex. 2 [arbitration agreement, pg. 2].) It further goes on to provide that "[o]nce the arbitration process has been initiated, the Company and Employee shall mutually select an arbitrator, who will be an attorney licensed to practice in the location where the arbitration proceeding will be conducted or a retired federal or state judicial officer." (Ibid.) "If for any reason the Parties cannot agree to an Arbitrator, either Party may apply to a court of competent jurisdiction with authority over the location where the arbitration will be conducted for appointment of a neutral Arbitrator." (Ibid.)

Here, Plaintiff purports to have initiated the arbitration process with JAMS and that doing so was in accordance with the Court's order and the arbitration agreement. Plaintiff asserts that Defendant merely objected to Plaintiff's choosing JAMS as the arbitration provider to administer the proceeding and that it did not engage in the mutual selection of a neutral arbitrator before filing the instant motion seeking the Court's intervention. However, Plaintiff's framing of the nature of the parties' dispute is specious as Plaintiff has unilaterally undermined the mutual selection process by removing any non-JAMS arbitrator from the selection pool whereas the parties' have not designated JAMS to serve as the arbitration provider. Plaintiff refused to dismiss the arbitration with JAMS. Hence, as Defendant notes, the parties are in disagreement as to the selection of a mutual arbitrator, Defendant has properly moved to seek the Court's appointment under section 1281.6 as well as the arbitration agreement.

Section 1281.6 requires the Court to "nominate five persons from lists of persons supplied jointly by the parties to the arbitration or obtained from a governmental agency concerned with arbitration or private disinterested association concerned with arbitration." (Code Civ. Proc., § 1281.6.) Defendant provided its suggested list of arbitrators; however, Plaintiff has provided no such list. Therefore, the hearing shall be continued and the parties are ordered to meet and confer and, at least 10 days before the continued hearing date, construct and file with the Court a joint list of proposed arbitrators from which the Court will make its nomination. Thereafter, pursuant to section 1281.6, the parties shall,

within five-day period of the Court's nomination, "jointly select the arbitrator whether or not the arbitrator is among the nominees." (Ibid.)

Plaintiff's request to "hold the arbitration [with JAMS] in abeyance while the parties complete a fair selection process or seek appointment under section 1281.6" is rejected. The Court, granting such an order, would be injecting additional terms into the parties' arbitration agreement which the parties have not agreed to. Further, once a matter has been submitted to arbitration, the Court's jurisdiction is limited "to determine any subsequent petition involving the same agreement to arbitrate and the same controversy." (Code Civ. Proc., § 1292.6.) The California Arbitration Act does vest the trial court "with the power ... entertain a petition by the plaintiff for judicial assistance in moving the arbitration forward where the matter is foundering for reasons beyond the plaintiff's control." (*Preston v. Kaiser Found. Hospitals* (1981) 126 Cal.App.3d 402, 407.) Here, however, the circumstances necessitating a hold on the arbitration process with JAMS were not created by anything beyond Plaintiff's control. Rather, Plaintiff unilaterally initiated arbitration with JAMS while bypassing a mutual discussion with Defendant.

The hearing on the Motion to Select a Neutral Arbitrator is CONTINUED to 10.07.26.

The parties are ordered to meet and confer and, at least 10 days before the continued hearing date, construct and file with the Court a joint list of proposed arbitrators from which the Court will make its nomination.

2.

CASE #	CASE NAME	HEARING NAME
CVPS2508625	REED VS BOYS AND GIRLS CLUB OF COACHELLA VALLEY INC.	HEARING RE: MOTION TO COMPEL BY BOYS AND GIRLS CLUB OF COACHELLA VALLEY INC.

Tentative Ruling: A motion to compel further interrogatory responses must include a meet-and-confer declaration under Code of Civil Procedure section 2016.040. (CCP §2030.300(b)(1).) As effective 1/1/26, section 2016.040 requires a meet-and-confer declaration to "state facts showing a reasonable and good faith attempt, either *in person*, *by telephone*, or *by videoconference*" to resolve disputes. A good faith meet and confer attempt requires more than just an attempt to persuade the objector of the error of his or her ways, it requires counsel to talk the matter over, compare their views, consult, and deliberate. (*Clement v. Alegre* (2009) 177 Cal.App.4th 1277, 1294.) It requires a serious attempt by the moving party to informally resolve each issue with the responses. (*Id.* at 1293.) Arguments and debates do not constitute an earnest attempt to resolve discovery disputes. (*In re Marriage of Moore* (2024) 102 Cal.App.5th 1275, 1293.) The parties must present the merits of the respective positions, and "[o]nly after all the cards have been laid on the table, and a party has meaningfully assessed the relative strengths and weaknesses of its position in light of all available information, can there be a 'sincere' effort to resolve the matter." (*Id.* at 1293 [internal quotation marks omitted].) Here, Defendant concedes that no in-person, telephone, or videoconference occurred before it filed the motion. (Overstreet Reply Decl., ¶¶ 3-4.) Defendant relies on *Clement v. Alegre*, supra, 177 Cal.App.4th 1277 to argue that a live conference is not always necessary. However, *Clement* predates the current statutory language expressly requiring an in-person, telephone, or videoconference.

The record also does not establish futility. After Plaintiff served verified supplemental responses and produced additional documents, Defendant did not request an oral or video conference after reviewing those responses. (Goldstein Decl., ¶¶ 7-9.) Since defense counsel merely sent correspondence and made no attempt to call or discuss the issues substantively, the court is ordering a proper meet and confer.

Motion to Compel is continued to 10.07.26.

Parties ordered to meet and confer **in person, by telephone or videoconferencing** in accordance with CCP § 2016.040(a). A joint declaration shall be filed at least 10 days prior to the next hearing date addressing the meet and confer. No further briefing shall be permitted.

3.

CASE #	CASE NAME	HEARING NAME
CVPS2508832	COYNE VS GENERAL MOTORS, LLC	HEARING RE: MOTION FOR ATTORNEYS FEES BY NATALIE ZISKIND COYNE

Tentative Ruling: Under Civil Code § 1794(d) (Song-Beverly Act), “[i]f the buyer prevails in an action under this section, the buyer shall be allowed by the court as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney’s fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action.”

At issue in this motion is the reasonableness of Plaintiff’s request. The matter of reasonableness of a party’s attorney’s fees is within the sound discretion of the trial judge. (*Bruckman v. Parliament Escrow Co.* (1989) 190 Cal.App.3d 1051, 1062.) Courts generally consider several factors in determining the reasonableness of a party’s attorney’s fees. These include “the nature of the litigation, the difficulty of the litigation, the attention given to the issues, the success of the attorney’s efforts, and time consumed. [Citation omitted.]” (*PLCM Group, Inc. v. Drexler* (1999) 72 Cal.App.4th 693, 708.) Although a fee request ordinarily should be documented in great detail, the court is entitled to make its own evaluation of the reasonable worth of the work done in light of the nature of the case and the credibility of counsel’s declaration, unsubstantiated by time records and billing statements. (See *Weber v. Langholz* (1995) 39 Cal.App.4th 1578, 1587; see also *Bernardi v. County of Monterey* (2008) 167 Cal.App.4th 1379, 1394.) Specifically in exercising its discretion, the Court may consider all of the facts and the entire procedural history of the case in setting the amount of a reasonable attorney’s fee award. (*Bernardi, supra*, 167 Cal.App.4th 1379, 1394.)

Lodestar is the objective starting point to determine if attorney’s fees are reasonable. (*Nichols v. City of Taft* (2007) 155 Cal.App.4th 1233, 1242.) Lodestar is calculated by assessing the reasonable rate for comparable services in the local community, multiplied by the reasonable number of hours spent on the case. (*Id.*) Lodestar requires the court to determine what a reasonable rate and number of hours expended. (*Concepcion v. Amscan Holdings, Inc.* (2014) 223 Cal.App.4th 1309, 1320.)

First, the hourly rate of \$625 is high for Riverside County. A more reasonable rate is \$550.

Second, as to the hours spent, the court finds spending 1.2 hours on preparing the complaint is excessive. A reasonable amount is .5 hours. The court also finds a clerical task in serving the complaint. The court also reduces the 3.0 hours for "Review Oppo / Draft / File Serve Reply / Hrg" to 2.0 hours. The court reduces 1.9 hours total.

As for costs, the court finds the costs to be supported and reasonable, and awards the full amount of \$705.21.

Plaintiff's Motion for Attorney's Fees GRANTED in PART.

Plaintiff awarded \$8,470 (15.4 hours at \$550/hr) + \$705.21 costs for total of \$9,175.21.

4.

CASE #	CASE NAME	HEARING NAME
CVPS2600719	MUNOZ MACIAS VS ARMANDO BAR & GRILL, INC. A CALIFORNIA CORPORATION	HEARING ON MOTION TO COMPEL ARBITRATION

Tentative Ruling: No tentative ruling. Hearing is continued to 10.27.26.

Plaintiff is permitted to file a supplemental opposition to the Reply considering the additional information contained in Defendant's Reply. Any additional briefing filed by either party will result in sanctions. All papers relating to the motion to compel arbitration shall be served electronically on counsels' email addresses of record. Defendant disregarded the court's order on 8.10.26. Sanctions imposed in the amount of \$250 as to attorney Juan M. Armenta, payable to the court in 30 days. Further violations shall result in additional sanctions.

5.

CASE #	CASE NAME	HEARING NAME
CVPS2600927	HERNANDEZ VS AMERICAN HONDA MOTOR CO., INC., A CALIFORNIA CORPORATION	HEARING RE: MOTION TO COMPEL FURTHER RESPONSES TO PLAINTIFF'S REQUEST FOR PRODUCTION OF DOCUMENTS, SET ONE BY ERICA MARIA HERNANDEZ

Tentative Ruling: A party may file a motion compelling further answers to RFPs if it finds that the response is inadequate, incomplete, or evasive, or an objection in the response is without merit or too general. (C.C.P. §2031.310.) The moving party on a motion to compel further responses to RFPs must set forth "specific facts showing good cause justifying the discovery sought by the demand." (C.C.P. §2031.310(b)(1).) The burden to establish "good cause," is met by a fact-specific showing of relevance. (*Glenfed Develop. Corp. v. Superior Court* (1997) 53 Cal.App.4th 1113, 1117, citing Weil & Brown, Cal. Practice Guide: Civil Procedure Before Trial (The Rutter Group 1996) ¶¶ 8:1495.6 to 8:1495.10.) "In the context of discovery, evidence is 'relevant' if it might reasonably assist a party in evaluating its case, preparing for trial, or facilitating settlement." (*Glenfed Development Corp., supra*, 53 Cal.App.4th at 1117.) It is sufficient if the information sought might reasonably lead to admissible evidence. (C.C.P. §2017.010.) Once good

cause is established, the responding party has the burden to justify any objections. (*Kirkland, supra*, 25 Cal.App.4th at 98.)

Defendant first argues Plaintiff's motion should be denied because their separate statement does not comply with CRC 3.1345. CRC 3.1345(c) states that "[a] separate statement is a separate document filed and served with the discovery motion that provides all the information necessary to understand each discovery request and all the responses to it that are at issue. The separate statement must be full and complete so that no person is required to review any other document in order to determine the full request and the full response." It then states that the separate statement must include the text of each request/interrogatory, the text of each response, and the factual and legal reasons for compelling a further response. (*Ibid.*) While Defendant is correct that Plaintiffs include general arguments about various objections raised by Defendant in their separate statement, they do set forth the text of each request, Defendant's response, and the reasons why further responses are required. Thus, Plaintiffs comply with CRC 3.1345, and Defendant's argument to the contrary is without merit.

Defendant argues that AB1755 limited the scope of permissible discovery in lemon law cases, so to the extent the documents sought by Plaintiff are outside those listed in AB1755 and C.C.P. § 871.26(h), they are not relevant and do not have to be produced. (Opposition, pp. 4:20-6:5.) This is incorrect. AB1755, codified in C.C.P. §§ 871.20-871.28, among other things, provides a list of documents that must be exchanged by the parties within 60 days of a responsive pleading. (See, C.C.P. § 871.26(b), (h).) In no way does it limit the scope of discovery - it is not an exhaustive list of the only things allowed to be discovered in a lemon law case. Furthermore, pursuant to C.C.P. § 871.20(a), the above code sections apply only "to an action, brought against a manufacturer who has elected under Section 871.29 to proceed under this chapter." There is no evidence that Defendant elected to proceed under this chapter, so it does not apply.

While the parties disagree about whether the initial responses to the RFPs were sufficient, there is no dispute that Defendant produced documents on July 30, 2026, and provided supplemental responses to the RFPs on August 12, 2026. (See, Decl. of Nicholas R. Carrera at ¶¶ 6-7; Reply, p. 1:15-18.) Contrary to Plaintiff's argument, this makes the present motion moot. To the extent that Plaintiff believes the supplemental responses are deficient, it can file a new motion based on those responses, after meeting and conferring with Defendant.

Defendant's Request for Sanctions DENIED.

Plaintiff's Motion to Compel Further Responses to Request for Production, Set One, is deemed MOOT.

Case Management Conference continued to 1.27.27. Prior to the next hearing, parties are directed to have a meet and confer and file a joint updated Case Management Statement. The updated Case Management Statement shall be submitted on pleading paper, addressing the following:

-Plaintiff shall address why the vehicle qualifies as a "buyback" and describe what was or is still wrong with the vehicle. The information is to be specific and not just give a generic term such as "engine/steering/braking" problems

-Defendant shall address why the vehicle does not qualify for a “buyback” or that the vehicle does qualify, but there are issues regarding the buyback price, credits, attorney fees/costs etc.

The updated Case Management Statement shall be filed at least 5 court days prior to the continued Case Management Conference.